the same pattern of government. Some States have Bicameral legislature and some states have unicameral legislature.

Part VI of the Constitution which deals with the government in the states, is not applicable to the state of Jammu and Kashmir, which enjoys a special status and has a separate constitution of its own (Article 370).

**The State Executive**

- The Governor.
- The Council of Ministers Headed by the Chief Minister.

## 3.5.1 The Governor

### Provision for Governor

Article 153 of the Constitution lays down that there shall be a Governor for each state. Normally, there will be a Governor for each state but the constitution amendment of 1956 makes it possible to appoint the same person as the Governor for two or more states.

**Debate**



What happens if the President and the Prime Minister disagree about some policy? Whose view would prevail and why?

### Appointment of the Governor

The Governor of a state is appointed by the President of India. (Article155). No person shall be appointed as a Governor unless he/she:

- is a citizen of India
- has completed the age of 35 years
- does not hold any other office of profit
- is not a member of parliament or state legislature.

### Term of Office and Position

The prescribed term of office for the Governor is 5 years. But he holds office at the pleasure of the President. (Article 156). He may be removed by the President at any time. He may be transferred by the President from one state to another too. The Governor draws a salary which is fixed by the parliament. He is also entitled to certain allowances and benefits.

As per the Constitution of India, the Governor is the constitutional and executive head of the State. The executive power of the State is vested with the Governor. All executive actions are carried on in the name of the Governor. In actual practice, the real executive powers of the State lie with the Council of Ministers headed by the Chief Minister. The Governor acts according to the advice of the Council of Ministers, who are collectively responsible to the Legislative Assembly of the State.

**Activity**



- Who is a Lieutenant Governor?
- Find out which places in India possess a lieutenant Governor?
- Write two or three sentences about the lieutenant Governors of India.



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